

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Arlyn Rodriguez	Team: Team # 3	CCRB Case #: 201303470	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Monday, 04/15/2013 6:50 PM	Location of Incident: in front of § 87(2)(b)	18 Mo. SOL 10/15/2014	Precinct: 41
Date/Time CV Reported Wed, 04/17/2013 10:10 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 04/26/2013 2:16 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Scott Berger	10210	948659	041 PCT
2. POM Carlos Cruz	03361	948830	041 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Carlos Cruz	Force: Officer Carlos Cruz used physical force against § 87(2)(b)	A . Complaint Withdrawn
B . POM Scott Berger	Force: Officer Scott Berger used physical force against § 87(2)(b)	B . Complaint Withdrawn

Case Summary

On May 1, 2013, telephone contact was established with § 87(2)(b) and an interview was scheduled for May 8, 2013. On May 6, 2013, § 87(2)(b) called the undersigned investigator to cancel the scheduled appointment. During the phone conversation, § 87(2)(b) stated that he wished to close his CCRB case until his criminal case is concluded. On May 9, 2013, contact was established with § 87(2)(b) and, during that phone conversation, he formally withdrew his complaint. § 87(2)(b) is aware that he can request to have the case re-opened upon the conclusion of the criminal case.

§ 87(2)(b) was not coerced into withdrawing his complaint by the CCRB or NYPD. Supervising Investigator Edwin Pena listened to the withdrawal recording (recorded on the digital file labeled “201303470_20130509_1559.WAV,” at 0:01:19, attached to IA#13) and determined it was within the CCRB’s guidelines. On May 9, 2013, the investigator mailed § 87(2)(b) a withdrawal letter, which will be added to the case file when returned to the agency with his signature. § 87(2)(g), it is recommended that **Allegations A and B** be closed as ***complaint withdrawn***.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date